

25NWCV03179 25NWCV03179

County: los-angeles

Division: Civil Law and Motion

Department: P

Hearing date: 2026-07-31

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Case Number: 25NWCV03179 Hearing Date: July 31, 2026 Dept: P

EDSON CASTRO v. LUXURY

LEASE PARTNERS LLC

CASE NO.: 25NWCV03179

HEARING: 07/31/2026 @ 9:30 AM

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TENTATIVE ORDER

Counsel Todd Friedman, Law Offices of Todd M. Friedman's motion to be relieved as counsel for Plaintiff Edson Castro is CONTINUED to Friday, August 14, 2026, at 9:30 AM in Dept. P. Counsel is instructed to file the omitted proof of service by August 12, 2026.

Moving party to give notice.

Counsel Todd Friedman, Law Offices of Todd M. Friedman (Counsel) moves to be relieved as counsel for Plaintiff Edson Castro (Plaintiff).

Background

On September 5, 2025, Plaintiff filed this action against Defendant Luxury Lease Partners LLC alleging causes of action for breach of contract and violation of the Consumer Legal Remedies Act.

On January 26, 2026, Plaintiff filed a Notice of Settlement

of Entire Case.

Legal Standard

“The attorney in an action or special proceeding may be changed at any time before or after judgment or final determination, as follows: ¶ 1. Upon the consent of both client and attorney, filed with the clerk, or entered upon the minutes; ¶ 2. Upon the order of the court, upon the application of either client or attorney, after notice from one to the other.” (Code Civ. Proc., § 284.)

California Rules of Court, rule 3.1362 requires that the following be submitted in support of an attorney's motion to be relieved as counsel pursuant Code of Civil

Procedure section 284, subd. (2): (1) a notice of motion and motion directed to the client (Form MC-051); (2) a declaration stating in general terms and without compromising the confidentiality of the attorney-client relationship why a motion under Code of Civil Procedure section 284, subd. (2) is brought instead of filing a consent under Code of Civil Procedure section 284, subd. (1) (Form MC-052); (3) a proof of service evidencing service of the notice of motion and motion, declaration, and proposed order on the client and on all other parties who have appeared in the case; and (4) a proposed order relieving counsel (Form MC-053). (Cal. Rules of Court, rule 3.1362, subds. (a), (c), (d), (e).)

Discussion

Counsel moves to be relieved as counsel for Plaintiff.

Here, in compliance with California Rules of Court, rule 3.1362, Counsel submits a notice of motion and motion on Form MC-051 directed to Plaintiff. Counsel also submits a declaration on Form MC-052 demonstrating good cause to be relieved as counsel for Plaintiff. Specifically, Counsel states that there has been a complete breakdown of the attorney-client relationship based on a disagreement of a severe nature. Counsel provides a proposed order on Form MC-053. Counsel does not provide a proof of service reflecting service of each document to Plaintiff. Therefore, the Court finds that Counsel has not fully complied with the requirements under California Rules of Court, rule 3.1362.

The Court finds a continuance warranted to permit counsel to file the omitted proof of service.

Accordingly, Counsel's motion to be relieved as counsel for Plaintiff is CONTINUED to Friday, August 14, 2026, at 9:30 AM in Dept. P. Counsel is instructed to file the omitted proof of service by August 12, 2026.